

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF VOROBYEVA AND OTHERS v. RUSSIA

(Applications nos. 7440/07 and 4 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Vorobyeva and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the various restrictions imposed by the authorities on the location, time or manner of conduct of public events. In applications nos. 75642/12 and 27036/14, the applicants also raised complaints about the lack of domestic remedies against the alleged violations of their freedom of assembly.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of the restrictions imposed by the authorities on the location, time or manner of conduct of public events. They relied, expressly or in substance, on Article 11 of the Convention, which reads:

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references).

8. In the leading case of *Lashmankin and Others v. Russia,* no. 57818/09 and 14 others, §§ 402-78, 7 February 2017, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were based on legal provisions which did not meet the Convention's "quality of law" requirements and were moreover not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention in respect of each applicant.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. In applications nos. 75642/12 and 27036/14 the applicants submitted complaints under Article 13 of the Convention about the lack of effective remedies against the alleged violations of their freedom of assembly (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Lashmankin and Others*, cited above, §§ 342-61, and *Kablis v. Russia*, nos. 48310/16 and 59663/17, §§ 64-72, 30 April 2019.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Having regard to the nature of the applicants' complaints, the Court considers that the finding of a violation, triggering the respondent State's obligation to take measures aimed at ensuring the respect of the right to freedom of assembly indicated in the judgment of *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 27-29, 27 November 2018, constitutes sufficient just satisfaction (see, for a similar approach, *Alekseyev and Others v. Russia* ([Committee], nos. 26624/15 and 76 others, § 18, 16 January 2020), *Zverev and Others v. Russia* ([Committee], nos. 26363/18 and 2 others, § 15, 7 July 2022, and *Taratunin and Others v. Russia* ([Committee], nos. 2051/18 and 4 others, § 14, 28 July 2022)).

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the restrictions imposed by the authorities on the location, time or manner of conduct of public events;

4. *Holds* that there has been a violation of Article 13 of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds* that the finding of a violation constitutes in itself sufficient just satisfaction.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(Restrictions on location, time or manner of conduct of public events)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location Date of the public event planned	Restrictions applied	Final domestic decision (type of procedure) Date Name of the court	Other complaints under well-established case-law
1.	7440/07 16/01/2007	**Valentina Nikolayevna VOROBYEVA** 1957	Chebotareva Olga Vasilyevna Nizhniy Novgorod	Nizhniy Novgorod, Kremlin 14/03/2007	Proposal to change the location, proposal to change the time	Notification procedure: 29/05/2007 Nizhniy Novgorod Regional Court	
2.	75624/12 15/10/2012	**Tatyana Nikolayevna KULBAKINA** 1987	Peredruk Aleksandr Dmitriyevich St Petersburg	Murmansk 15/04/2012 Murmansk 02/04/2014	Proposal to change the location Proposal to change the location	Notification procedure: 11/07/2012 Murmansk Regional Court Notification procedure: 15/05/2014 Murmansk Regional Court	Art. 13 – lack of an effective remedy in domestic law in relation to Article 11 complaint
3.	16041/13 13/02/2013	**Valentina Aleksandrovna FEDYUNINA** 1932	Seleznev Sergey Aleksandrovich Moscow	Moscow 04/09/2012	Proposal to change the location	Notification procedure: 20/11/2012 Moscow Regional Court	
4.	28465/13 04/04/2013 (3 applicants)	**Artem Nikolayevich KALININ** 1984 **Alevtina Konstantinovna PAROYEVA** 1992 **Anastasiya Sergeyevna GRUMAND** 1993	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Stefanovskaya square Syktyvkar 16/10/2012	General prohibition on holding public events at certain locations (near the court buildings)	Notification procedure: 18/04/2013 Supreme Court of Komi Republic	
5.	27036/14 13/03/2014	**Darya Vladimirovna CHERNYSHEVA** 1991 **Marina Sergeyevna SEDOVA** 1988	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Syktyvkar 24/09/2013	Proposal to change the location	Notification procedure: 09/12/2013 Supreme Court of the Komi Republic	Art. 13 – lack of an effective remedy in domestic law in relation to Article 11 complaint